PREMIER ROCKS (PRIVATE) LIMITED
versus
CHENGDU ENGINEERING ZIMBABWE COMPANY
(PRIVATE) LIMITED
and
KAGWA INVESTMENTS (PRIVATE) LIMITED T/A
SKYLAKE DRILLING AND CIVILS (PRIVATE) LIMITED
and
THE SHERIFF OF ZIMBABWE
and
OFFICER COMMANDING ZIMBABWE REPUBLIC POLICE
MABVUKU N.O.

HIGH COURT OF ZIMBABWE
MANYANGADZE J
HARARE, 10 April 2026 & 21 May 2026

Urgent court application

S.M. Hashiti, for the applicant
B.K. Mataruka, for the first respondent
E.R. Samkange, for the second respondent

MANYANGADZE J:

INTRODUCTION

This is an urgent court application in which the applicant is seeking the following relief:

> "a) The second Respondent, its agents, contractors, employees or assignees and all those deriving or claiming authority from it be and are hereby barred and interdicted from interfering with the Applicant's road construction project on the MABVUKU INTERCHANGE PROJECT SITE.
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> b) The second Respondent and all those claiming occupation through it or through first Respondent of the MABVUKU INTERCHANGE PROJECT SITE be and are hereby ordered to vacate the MABVUKU INTERCHANGE PROJECT SITE and remove all unauthorised equipment, personnel and tools therefrom.
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> c) In the event that second Respondent fails to vacate the property, the Sheriff of the High Court of Zimbabwe and the members of the Zimbabwe Republic Police are hereby authorised

to evict the first and second Respondents and all those who claim occupation through it and remove all unauthorised equipment thereon."

At the initial hearing of the matter, the parties agreed that the court proceeds to determine the application on the papers filed of record and made no further submissions.

FACTUAL BACKGROUND

The applicant, first and second respondents are the key parties involved in the construction of the Mabvuku Traffic Interchange ("the project"). The construction work is at the intersection of the Harare-Mutare highway and the turn-off to the Mabvuku suburb ("the project site").

The applicant is the main contractor, in terms of an agreement it entered into with the Government of Zimbabwe, through the Ministry of Transport and Infrastructure Development ("the Ministry").

The applicant sub-contracted the first respondent to carry out specialised structural engineering works essential to the project. The first respondent in turn sub-contracted the second respondent to carry out essential drilling services.

The first and second respondents' are expected to vacate the project site after the discharge of their specialised mandates, leaving the applicant, as the principal contractor, to move the project to completion.

A dispute arose between the first respondent and the second respondent, being an alleged breach of contract by the second respondent. As a consequence, the first respondent terminated or gave notice of termination of the contract between the two parties. The dispute was referred to arbitration in terms of the provisions of the contract.

The applicant is not a party to the said dispute and the arbitration proceedings.

On 12 March 2026, the applicant wrote a letter to both the first and second respondents, asking them to resolve their dispute elsewhere, off the project site. The second respondent refused to vacate the project site, prompting the instant application.

APPLICANT'S ARGUMENT

The gravamen of the applicant's contention is that as principal contractor, it is being impeded in the progression of the project by the continued and unlawful occupation of the project site by both respondents. The applicant avers that the project is an urgent project of

national importance. The applicant, without expressly stating so, is inviting the court to take judicial notice of the congestion at the Harare- Mutare highway and the Mabvuku turn off. The applicant asserts that completion of the project is therefore a matter of immense public and national interest. This is reflected in paragraph 20 of its founding affidavit, wherein is stated:

> ‘‘It needs to meet the urgent deadlines mandated by the tender as this road is the major artery and network connecting hundreds of thousands of passengers to Harare, the eastern highlands and the Manica and Forbes border posts. This economic conduit needs to be completed and commissioned urgently.’’

The applicant further contends that it faces the serious risk of financial prejudice and liquidation at the instance of its creditors. This point is highlighted in paragraph 21 of the founding affidavit as follows:

> “If Applicant fails to gain access to its PROJECT SITE, it will be exposed to serious financial prejudice as it will not be able to implement its project and repay its operational debts. It faces the potential of being liquidated by its Creditors and lose out on other government tenders and projects.”

In its heads of argument, the applicant points out that the first and second respondents are in occupation of the project site with the approval of the applicant. If such approval is withdrawn, there is no basis for continued occupation.

The applicant indicates that there are “critical admissions” by the first and second respondents. The first respondent has conceded the relief sought by the applicant. It has not contested revocation of its occupation. The second respondent, having been sub-contracted by the first respondent, has therefore no leg to stand on. The applicant has referred the court to the case of *Zuva Petroleum* v *Chirenje* HH 166/16, where the rights of a sub-tenant were said to be subservient to those of the lessee. Where the lessee loses the right of occupation, the sub-lessee cannot assert such a right.

The applicant further points out that the second respondent itself stated that it has not refused to vacate the project site. The applicant argues that the second respondent cannot, however, insist on occupying the project site as it is doing so on the basis of a contract between itself and the second respondent. The second respondent cannot enforce contractual rights against the applicant, where it has no contract with the applicant. This point is captured in paragraph 15 of applicant’s heads of argument in the following terms:

> “The second respondent further concedes that it has no agreement with the applicant and only has one with the first respondent. It cannot therefore seek to enforce contractual claims and

perceived remedies against a party with whom it has no contract. The principle of privity of contract applies *in casu*."

FIRST RESPONDENT'S ARGUMENT

Not much can be said about the first respondent. It simply avers that it terminated the contract it had with the second respondent. This resulted in the dispute being referred to arbitration.

What is significant to note is that it is not opposed to the application.

SECOND RESPONDENT'S ARGUMENT

The second respondent has raised two points *in limine*. These are that:

(i) The application is not urgent
(ii) The first respondent's notice of opposition is invalid

Urgency

The issue of urgency has been raised under two aspects. The first aspect is on a purely procedural point. It is the averment that the certificate of urgency is defective. The reason for this is that the notice of application itself, based on a modified Form No. 23, was made on 19 March 2026. The certificate of urgency was signed on 18 March 2026. Thus, argues the second respondent, the certificate of urgency was based on a non-existent application, as such application was filed on 19 March 2026, a day after the certificate of urgency was signed.

The second respondent contends that this anomaly vitiates the entire application.

The second aspect is on the substantive question of whether the application is urgent. The second respondent avers that urgency has not been substantiated as per the *locus classicus* case of *Kuvarega* v *Registrar General & Anor* 1998 (1) ZLR 188 (H).

The second respondent contends that the applicant has not shown what it is that cannot wait that makes the matter urgent.

In countering the second respondent's averments, the applicant points to the untenable and unsustainable congestion at the Mabvuku turn off. The extreme hardship caused to motorists passing through this bottleneck is self-evident. It is a national crisis requiring urgent attention. This point is emphasised in paragraph 5.6 of the applicant's answering affidavit, in which is submitted:

> "This matter is urgent. The project in question is of national significance, and it carries direct implications for the economy and the broader public interest. The interchange is a critical piece of transport infrastructure designed to improve traffic flow, reduce congestion, and enhance connectivity between key commercial and residential zones. Its completion facilitates the efficient movement of goods and services, which is essential for trade, logistics, and overall economic productivity. Delays in the project inevitably result in increased transportation costs, loss of productive time, and inefficiencies in supply chains, all of which negatively impact economic activity. Accordingly, any obstruction to its timely completion has far-reaching consequences, thereby justifying the urgency of this Application."

The applicant also contended that it has incurred contractual obligations with heavy financial obligations. It faces the risk of liquidation and serious reputational damage.

It is noted that that these points have already been adverted to and appear under the summary of applicant's argument above. There is therefore no need for further elaboration. Based on the factors highlighted, it is my considered view the matter falls under the urgent category.

The other aspect, as already indicated, is on the validity of the certificate of urgency. The notice of application, done on Form 23, is dated 19 March 2026. The certificate of urgency is dated 18 March 2026.

In responding to this aspect, the applicant has focused more on the substance of the certificate of urgency. The point does not impugn the substance of the certificate of urgency. It is purely based on the error in the dates. The difference is in the digits 8 and 9, which can easily pass as a typographical error. The second respondent wants the entire application vitiated based on this error. The implication is that the legal practitioner concerned fabricated the certificate of urgency, as it was based on an application that was made on the following day. It seems to me inconceivable that is what transpired. There is no way, in my view, the author of the certificate of urgency could have addressed the issues averred in the founding affidavit, as he has done, without having gone through the same. Whilst legal practitioners are expected to be punctilious when drafting certificates of urgency or other legal documents, it seems to me within the range of normal human experience, even for professionals like legal practitioners, for such mix ups to happen.

In any case, a certificate of urgency is essentially the opinion of the legal practitioner who authored the certificate. The court can still form its own opinion of the urgency of the

matter, based on the founding affidavit and any annexures thereto. The record contains sufficient material on which to determine the urgency of the matter. It is that same material the legal practitioner would have used in forming his opinion on the same question. His opinion, whilst it may assist the court, does not supplant the court's own assessment of the facts of the matter.

In the circumstances, I am unable to uphold the second respondent's preliminary point on urgency, and it is accordingly dismissed.

Validity of the notice of opposition

The other point on the basis of which the second respondent seeks to vitiate the application is that the first respondent's notice of opposition is defective. It is defective in that it does not constitute opposition to the application. It is in fact a consent to the application. In this regard, the second respondent referred the court to the case of *Nelson Chamisa* v *Emmerson Dambudzo Mnangagwa & Ors* CCZ 21/19, where the Constitutional Court expunged from the record the notices of opposition of several respondents, which had been filed as supporting affidavits to the opposition but were in essence not opposed to the relief sought by the applicant. The apex court held that an opposing affidavit must oppose the relief sought by the applicant.

Relying on this authority, the second respondent submitted, in paragraph 8 of its heads of argument:

> " The First Respondent's Notice of Opposition is not a Notice of Opposition. First Respondent pitches its tent with the Applicant. It ought to have either consented to the application and ended there or oppose it. It is improper for it to attack the Second Respondent. To this extent, its Notice of Opposition is irregularly before the Court and ought to be expunged from the record. It is accordingly moved."

The first respondent has indicated that it will abide by the decision of the court. That amounts to a consent to the application.

Indeed, the first respondent ought to have filed a consent to the application, instead of a notice of opposition. Going by the *Chamisa* v *Mnangagwa* case, *supra*, that notice of opposition is improperly before the court. In this regard, the second preliminary point has merit and must be upheld. The second respondent's notice of opposition is accordingly expunged from the record.

Be that as it may, the application itself remains valid and must be determined on its merits *vis avis* the second respondent's opposition. The impropriety of the first respondent's notice of opposition does not have the effect of vitiating the application. Its merits must still be considered.

Apart from the preliminary points considered above, the second respond argues, on the merits, that it is on the project site by virtue of its contract with the first respondent. This position is clearly spelt out in the opening paragraph of the second respondent's heads of argument, wherein is submitted:

> "On the strength of a contract it has with the First Respondent, which contract was sanctioned by the Applicant, Second Respondent is carrying out construction works at the Mabvuku Interchange site. The contract between First Respondent and Second Respondent is the one Applicant placed before the Court and is attached as Annexure B to the founding papers. Applicant therefore, identifies with it and relies on it for its petition of this Court. The application ought not to have been made and it ought to be struck with costs on a punitive scale."

The second respondent alleges that the applicant is acting in collusion with the first respondent to oust it from the project site.

It is significant to note that the second respondent does not assert that it has a contract with the applicant. It clearly asserts that it has a contract with the first respondent.

THE LAW

This matter is resolved by reference to the law on the rights and obligations of sub-contractors *vis avis* the main or principal contractor.

The position has been clearly set out. A sub-contractor has no greater rights than those enjoyed by the one to whom it is sub-contracted. The sub-contractor's rights are derived from the sub-contract, and not the principal contract. In the case of *Zuva Petroleum Limited* v *S Chirenje* HH 166/16, the court considered the rights of a sub-tenant against those of a landlord. MUNANGATI-MANONGWA J stated, at pp 5-6:

> "In this case an understanding of the law pertaining to tenancy was crucial. In deciding the issue of eviction the court *a quo* had to consider the legal status of the respondent. Further it was important to consider what rights the respondent had regarding the occupation of the premises having determined his status. In *Omarshah* v *Karasa* 1996 (1) ZLR 212 HC at p 215 GILLESPIE J held that:
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> > "The rights of a subtenant as against a landlord are coterminous with those of the lessee. No greater rights may be acquired by her than those enjoyed by the lessee

> under the head lease. See *Bright* v *Truump Garage (Pty) Ltd* 1949 (3) SA (C) at 359. The proposition is applied in our law to the extent that a sub-lessee does not enjoy the protection of a statutory tenant where the lessee has surrendered any right of occupation under the head lease. This protection, it said,
> 'could never have been intended to apply when there never was any *vinculum Juris*, either contractual or quasi – contractual between an owner and a person whom he is seeking to eject from his premises"

The *Omarshah* case clearly sets out that the rights of a subtenant as against the landlord end when those of the lessee terminates, and that the subtenant cannot enjoy greater rights than those bestored on the lease holder. Where the lessee gives up occupancy the subtenant cannot seek protection as a statutory tenant. In simpler terms the rights of a subtenant are subservient to those of the lessee and when a lessee leaves the premises the subtenant has no legal basis to remain in occupation."

Another important dimension is that of privity of contract. A party cannot seek to enforce or assert contractual obligations against a party with whom it has no contract. This point was underscored by the Supreme Court in *TBIC Investments (Pvt) Ltd & Anor* v *Kennedy Mangenje* SC 13/18. BHUNU JA had this to say:

> "That conclusion of law renders both appellants strangers to the contract between the acquiring authority and the respondent. This brings us to the doctrine of privity of contract. That doctrine restricts the enforcement of contractual rights and remedies to the contracting parties, to the exclusion of third parties. The learned author Innocent Maja in his book *The Law of Contract in Zimbabwe* at p 27 para 1.5.3 graphically explains the doctrine as follows:
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> > "The doctrine of privity of contract provides that contractual remedies are enforceable only by or against parties to a contract, and not third parties, since contracts only create personal rights. According to Lilienthal, privity of contract is the general proposition that an agreement between A and B cannot be sued upon by C even though C would be benefited by its performance. Lilienthal further posts that privity of contract is premised upon the principle that rights founded on contract belong to the person who has stipulated them and that even the most express agreement of contracting parties would not confer any right of action on the contract upon one who is not a party to it."

The court *a quo* having correctly found that the sale of the land in dispute to the first appellant was a nullity and that the acquiring authority remains the lawful owner of the land in dispute, it follows that both appellants were not privy to that contract. That being the case, the doctrine of privity of contract excluded them from suing for cancellation of the contract between the first and second respondents in the form of the first respondent's offer letter."

APPLICATION OF THE LAW

The material facts on which this application turns are, largely, not in contention.

These are that the applicant holds the main contract with the Government, through the Ministry of Transport. It is therefore the principal contractor. The first respondent concluded

a contract with the applicant, and as such is the first sub-contractor. In turn, the first respondent concluded a contract with the second respondent. It appears there are other sub-contractors the first respondent entered into agreement with, which are not material to this matter.

There is no contract between the applicant and the second respondent. The contract is between the applicant and the first respondent.

The dispute regarding the alleged breach of contract, on the basis of which the first respondent terminated, or sought to terminate the contract between it and the second respondent, is a contractual issue between the first and second respondents. The applicant is not a party to this dispute. This dispute has been referred to arbitration, and the arbitration proceedings are pending.

Given these facts, which are common cause, I do not see any basis on which the second respondent can hold applicant at ransom over occupation of the project site. The rights and obligations flowing from the sub-contract between the first and second respondent cannot bind the applicant.

The second respondent argues, in its heads of argument, that the sub-contract between it and the second respondent was done with the approval of the applicant. I do not see the probative value of that fact. It does not make the applicant a party to the two sub-contractors' agreement. In any case, it is standard business practice that any sub-contract is entered into with the approval of the main contracting party. A lease agreement typically has a clause prohibiting sub-leases unless these are concluded with prior approval of the landlord. If such approval is obtained, it does not make the landlord a party to the sub-lease. The rights/obligations in the sub-lease remain those of the tenant and sub-tenant.

The cases cited above clearly show that the rights/obligations that flow from a sub-contract are as between the sub-contracting parties, such as tenant and sub-tenant. To hold otherwise would seriously distort the law on sub-leases or sub-contracts in general.

Thus, *in casu*, the dispute between the first and second respondents should not involve the applicant. There is no legal basis for applicant's involvement. If anything, the dispute creates an untenable situation on the project site, stalling progression of the project. It is not known when the arbitration proceedings will be brought to an end. Once the arbitrator makes his determination, there is no guarantee that it will not be challenged on review. No principal contractor wants to deal with sub-contractors embroiled in protracted litigation. It can only be to the detriment of the project concerned.

Further to that, as indicated by the applicant in its submissions, the second respondent is not resisting eviction from the project site. Its occupation of the project site is precariously hung on its relationship with the first respondent, which relationship is mired in litigation whose end is not clearly in sight. This presents an untenable and unsustainable scenario for the applicant, who is mandated to successfully complete what can easily be described as a national status project. The significance and urgency of this project have already been highlighted.

I note that the applicant seeks the relief of both eviction and an interdict. However, the way in which the applicant has packaged and advanced its case presents a legal predicament in so far as the relief of a final interdict is concerned. I have gone through the applicant's founding affidavit and heads of argument. I note that the applicant has not canvassed the essential requirement of the relief of a final interdict, which are a clear right, actual or reasonably apprehended injury and absence of any other remedy. These are trite, as set out in the leading case of *Setlogelo* v *Setlogelo* 1914 ad 221. No reference at all has been made in its heads of argument to cases that deal with this relief. Instead, the applicant has focused on the eviction of the first and second respondents, based on the applicant's rights to the project site.

For reasons already indicated, the said respondents, on their part, have not been able to establish a right of retention or continued occupation of the project site. The first respondent has not contested revocation of its occupation by the applicant. The second respondent's occupation, based as it was on first respondent's occupation, consequently, falls away. In the circumstances, the applicant has established a case for the eviction of the first and second respondents from the project site. This therefore is the relief the court can grant. I do not see any basis for granting the prohibitory interdict sought, as essential elements for granting such relief have not been sufficiently canvassed. It seems to me the interference complained of by the applicant is the respondents' unlawful occupation of the project site. Should the said respondents, having been evicted, engage in acts that interfere with the applicant's activities on the project site, it is open to the applicant to seek this remedy. This would be a separate cause of action the applicant would have to substantiate.

DISPOSITION

In the circumstances, it is the court's considered view that the applicant has satisfactorily established a case for the relief of the eviction of the first and second respondents from the project site.

In the result, it is ordered that

1. The first and second Respondents and all those claiming occupation through them of the MABVUKU INTERCHANGE PROJECT SITE be and are hereby ordered to vacate the MABVUKU INTERCHANGE PROJECT SITE and remove all unauthorised equipment, personnel and tools therefrom.
2. In the event that the first and second respondents fail to vacate the property, the Sheriff of the High Court of Zimbabwe and the members of the Zimbabwe Republic Police are hereby authorised to evict the first and second respondents from the project site and all those who claim occupation through them and remove all unauthorised equipment therefrom.
3. The first and second respondents bear the applicant's costs jointly and severally, the one paying the other to be absolved.

MANYANGADZE J:……..

Mafongoya and Matapura, applicant's legal practitioners
Gill, Godlonton & Gerrans, first respondent's legal practitioners
Samukange Hungwe, second respondent's legal practitioners